Republic of the Philippines
CAVITE STATE UNIVERSITY
Don Severino de las Alas Campus
Indang, Cavite

COLLEGE OF ENGINEERING AND INFORMATION TECHNOLOGY
Department of Information Technology

Name: _____ Student No.: _____
Course / Yr. / Sec.: _____ Date: _____

Portfolio #3 – Case Study Analysis on Legal and Ethical Issues

Objectives

- To distinguish between legal boundaries and ethical behavior in cybersecurity.
- To classify hacker behaviors based on industry taxonomy (White, Grey, Black Hat).
- To analyze the concepts of Liability, Due Care, and Due Diligence in a corporate setting, referencing the Philippine Data Privacy Act (RA 10173) and Cybercrime Prevention Act (RA 10175).

Background / Scenario

This is an individual assessment.

The Case of "MedCare Clinic"
MedCare Clinic is a medium-sized hospital in the Philippines. To save money, the hospital management refused to install updated firewalls and did not assign a Data Protection Officer (DPO), ignoring repeated warnings from their IT staff.

Mark, an IT student doing his internship at MedCare, discovers that the patient database (containing names, addresses, and medical histories) is completely unencrypted and accessible from the public internet. Mark wants to fix it, but he has no administrative access.

Frustrated by the management's negligence and wanting to protect the patients, Mark acts on his own. From his house, he hacks into the hospital's network without permission. To "prove" how dangerous the flaw is, he downloads 500 patient records. He then posts on a public tech forum: "MedCare Clinic is exposing patient data! Fix it now or I will release the records!"

The hospital is ultimately investigated by the National Privacy Commission (NPC) and the NBI.

Instructions

Part 1: Hacker Taxonomy & Ethics

- a. Based on the Hacker Taxonomy discussed in the lecture, classify Mark's actions (White Hat, Black Hat, or Grey Hat). Provide a detailed justification for your choice based on his *intent* versus his *actions*.
- b. Review the "Commandments of Computer Ethics." Identify at least one specific commandment that Mark violated and explain how.

Part 2: Liability, Due Care, and Due Diligence
Analyze the actions of **MedCare Clinic's Management**.

- a. Did MedCare Clinic exercise **Due Care** and **Due Diligence**? Explain your answer using definitions from the lecture.
- b. Explain how MedCare Clinic's management failures make them **Liable** under the Philippine Republic Act 10173 (Data Privacy Act of 2012). Which specific requirements did they ignore?

Part 3: Cybercrime Analysis
Analyze the actions of **Mark**.

- a. Despite his "good" intentions, explain why Mark's actions are considered a criminal offense under Republic Act 10175 (Cybercrime Prevention Act of 2012). Which specific offenses against confidentiality, integrity, and availability did he commit?

Reflection

1. The lecture states: "Information Security often operates in the grey area where technology moves faster than the law." Do you believe Mark's actions were *ethical* even though they were *illegal*? Defend your stance.

Submission Format

SUBMIT YOUR ANSWERS in a single PDF document and remove all headers and rubric in your submission. Filename: **Portfolio1_Surname_Section.pdf** (e.g., Portfolio1_DelaCruz_BSCS-3-1.pdf).

Rubric

Criterion	Excellent (25 Points)	Good (16-20 Points)	Needs Improvement (11-15 Points)	Poor (0-10 Points)	Points
1. Following Instructions & Formatting	All parts of the activity are fully completed. The PDF is correctly named and perfectly structured with all required sections clearly labeled.	All major parts are completed, but there is a minor omission or a slight deviation from the required format.	A significant portion of the submission is incomplete, or the document is poorly formatted making it difficult to read.	The activity is not submitted, or it completely disregards the instructions and format.	/25
2. AI Originality & Effort	The submission demonstrates clear, original thought. Arguments are presented in the student's own words and show a deep understanding of the moral/legal nuances. No signs of AI generation.	The work appears to be the student's own, but the analysis is somewhat generic. The language is simple and lacks boilerplate phrasing.	The submission is vague, overly formal, or contains generic phrasing that raises concerns about originality and the potential use of AI tools for generation.	The submission is clearly generated by an AI tool with little to no modification, is plagiarized, or shows a severe lack of effort.	/25
3. Hacker Taxonomy & Ethics Analysis	Flawlessly classifies the hacker type and accurately cites the violated Computer Ethics commandments. The distinction between intent and action is clearly argued.	Correctly classifies the hacker type and ethics, but the justification lacks depth or relies on overly basic explanations.	Misclassifies the hacker type or fails to identify an applicable ethical commandment.	Fails to identify the core concepts. Explanations are entirely incorrect or missing.	/25
4. Legal Framework Application (RA 10173/10175, Due Care)	Accurately applies the concepts of Due Care, Due Diligence, and Liability to the hospital. Correctly identifies violations under both RA 10173 and RA 10175.	Identifies the legal concepts correctly but the mapping to the specific Philippine laws lacks some detail.	Confuses Due Care with Due Diligence. Mentions the laws but fails to explain how they were violated in this specific scenario.	Analysis of the legal frameworks is fundamentally flawed or completely missing.	/25
TOTAL SCORE					/100